

AMENDMENT TO TERMS OF AGREEMENT

This Amendment (this “Amendment”) is made as of February 1, 2024 (the “Amendment Effective Date”) by **Winston Support Services, LLC** (“Supplier”) and **Montefiore Medical Center** (“Montefiore”) to the Terms of Agreement by and between Supplier and Montefiore fully executed and dated as of April 19, 2017 (the “Agreement”).

WHEREAS, the parties wish to amend the Agreement to reflect an updated rate structure;

NOW, THEREFORE, for valuable consideration, the receipt and sufficiency of which is hereby acknowledged, the parties agree as follows:

1. **Defined Terms.** All capitalized terms used, but not defined herein shall have the meaning ascribed to such term in the Agreement.
2. **Effective Term.** This Amendment shall be effective as of the Amendment Effective Date.
3. **Rates. Exhibit A** of the Agreement is hereby amended and replaced in its entirety with **Exhibit A** attached hereto.
4. **Representations and Warranties.** Section 19 of the Agreement is hereby amended and replaced in its entirety with the following:

“Winston hereby represents and warrants to Montefiore that: (a) neither Winston nor its Supplemental Staff is subject to any restrictions with any previous or current employer, contracting party, or otherwise, which will be breached by its execution of this Agreement or performance of the services under this Agreement; (b) Winston has, or by the time of commencement of the services under this Agreement shall have, all licenses, certifications, registrations and permits required for Winston to perform under this Agreement including, but not limited to, licensure to do business in NYS and registration with the NYSDOH as a temporary health care services agency and Winston shall maintain such applicable licensure and registration throughout the duration of the Agreement; and (c) Winston's performance of the services under this Agreement and all actions taken by Winston on behalf of Montefiore shall be in accordance with all applicable federal, state, and local laws, rules and regulations and Joint Commission standards. Upon the request of Montefiore, Winston shall provide Montefiore with written evidence of such legal compliance. Winston further represents and warrants to Montefiore that (i) none of Winston nor any of its owners, officers, directors, Supplemental Staff, and/or any other person providing services under this Agreement on behalf of Winston is an individual or entity excluded from participation in any federal or state health care programs or debarred by the U.S. General Services Administration (“GSA”) from any procurement or non-procurement programs or activities; and (ii) Winston will immediately notify Montefiore in writing if Winston or any of its owners, officers, directors, Supplemental Staff and/or any other person providing services under this Agreement becomes excluded from participation in any federal or

state health care programs or debarred by the GSA during the Term. Winston will indemnify and hold Montefiore harmless from and against any claims, demands, suits, losses, damages, costs and expenses arising out of Winston's non-compliance with this Section.

Both parties agree to comply with the relevant provisions of Title 10 of the Official Codes, Rules and Regulations of the State of New York. In accordance with Section 400.4 of such regulations, and notwithstanding any other provision in this Agreement to the contrary, Montefiore shall remain responsible for ensuring that the services provided to patients at Montefiore pursuant to this Agreement comply with all applicable federal, state and local laws, rules and regulations, provided, however, that nothing herein shall be deemed to relieve Winston of any of its duties and responsibilities hereunder."

5. **Allied Health and Clinical Supplemental Staff.** Section 29 shall be amended to add the following paragraph at the end of the section:

"Winston shall comply with Article 29-K of the NYS Public Health Law, which prohibits Winston from restricting the employment opportunities of any nurses, certified nurse aides and licensed or unlicensed direct care staff assigned to Montefiore. Winston shall not be entitled to the payment of liquidated damages, employment fees or other compensation from Montefiore should any nurse, certified nurse aide or licensed or unlicensed direct care staff be hired as a permanent employee of Montefiore."

6. Exhibit C of the Agreement shall be amended to remove the chart titled "Allied Health / Clinical Positions in its entirety."
7. **No Other Amendments.** Except as expressly amended by this Amendment, all terms and conditions of the Agreement remain in full force and effect and the Agreement as amended herein is ratified and confirmed in all respects. In the case of any conflict with the terms of the Agreement, the terms of this Amendment shall govern.
8. **Miscellaneous.** This Amendment may be executed electronically and in counterparts, each of which shall be deemed an original, and all of which together shall constitute a single instrument. This Amendment shall be governed by and construed in accordance with the laws of the State of New York without giving effect to any conflict of law rule that would cause the application of the laws of any jurisdiction other than those of the State of New York. Any legal suit, action or proceeding arising out of or based upon this Amendment shall be instituted in the federal or state courts located in the County of New York, and each party irrevocably submits to the exclusive jurisdiction of such courts in any such suit, action or proceeding.

IN WITNESS WHEREOF, the parties have executed this Amendment as of the Amendment Effective Date.

MONTEFIORE MEDICAL CENTER

By:



signature

Philip O. Ozuah, MD, PhD
print name

President and Chief Executive Officer
title

3-21-24
date

WINSTON SUPPORT SERVICES, LLC

By:



signature

Ray McCourt
print name

Senior Vice President
title

3-11-24
date

EXHIBIT A

Skill Categories and Rate Schedules

(following six pages)

EXHIBIT A**To Agreement between Montefiore Medical Center and Winston Support Services, LLC
Rates**

Category - Allied	Role	Updated Market Rates	
Medical Clerical Role	Account Representative	\$	30
Medical Clerical Role	Accountant	\$	50
Medical Clerical Role	Accounting Clerk	\$	35
Medical Clerical Role	Accounts Payable	\$	35
Medical Clerical Role	Accounts Recievable	\$	35
Medical Clerical Role	Admin Category II	\$	35
Medical Clerical Role	Administrative Assistant	\$	30
Medical Clerical Role	Administrative Assistant I	\$	30
Medical Clerical Role	Administrative Assistant II	\$	35
Medical Clerical Role	Administrative Assistant III	\$	40
Medical Clerical Role	Administrative Coordinator	\$	30
Medical Clerical Role	Administrative Coordinator I	\$	35
Medical Clerical Role	Administrative Coordinator II	\$	40
Medical Clerical Role	Adminstrative Supervisor I	\$	40
Medical Clerical Role	Adminstrative Supervisor II	\$	45
Medical Clerical Role	Advanced Administrative Asst.	\$	50
Application/Web development	Application Developer	\$	110
Helpdesk	Application Support	\$	65
Medical Clerical Role	Assistant Administrator	\$	70
Medical Clerical Role	Benefits Specialist	\$	57
Medical Clerical Role	Bi-lingual Secretary	\$	35
Project leadership	Business Analyst	\$	75
Medical Support Staff	Cardiovascular Tech	\$	60
Social Services	Case Manager	\$	40
Social Services	Caseworker (BA/BS)	\$	35
Medical Support Staff	Central Supply Technician	\$	35
Medical Administrative Role	Certified Coder/CPD	\$	55
IT infrastructure	Citrix/ Vmware	\$	110
Medical Administrative Role	Claim Examiner	\$	25
Medical Clerical Role	Clerical Assistant IV	\$	28
Medical Clerical Role	Clerical Associate	\$	28
Medical Clerical Role	Clerk	\$	28
Medical Administrative Role	Collections	\$	35
	Communications Specialist	\$	30
Rehab/Physical Medicine	COTA	\$	50
Social Services	Couselor CASAC	\$	35

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Rehab/Physical Medicine	Creative Arts Therapist	\$	60
Admitting/Scheduler	Credentialing Coordinator	\$	40
Admitting/Scheduler	Credentialist	\$	40
Radiology	CT Scan	\$	65
Medical Clerical Role	Customer Service Representative	\$	28
IT Security	Cyber Security	\$	120
E-Learning	Cyber Security	\$	110
Medical Clerical Role	Data Entry Clerk	\$	28
IT Security	Data Security	\$	120
IT infrastructure	Database Analyst/ Administrator	\$	100
Dental Services	Dental Assistant	\$	40
Dental Services	Dental Hygienist	\$	60
Helpdesk	Desktop	\$	55
	Development Associate		
IT infrastructure	DevOps	\$	150
Nutrition Services	Dietary Aide	\$	27
Medical Support Staff	EEG Technician	\$	60
Medical Support Staff	EKG Technician	\$	40
	Employee Relations Manager	\$	75
Medical Support Staff	Endoscopy Tech	\$	50
	Environmental		
Medical Clerical Role	Epic Scheduling	\$	35
Medical Support Staff	Escort/ Transporter	\$	27
	EVS Supervisor	\$	40
Medical Clerical Role	Executive Assistant I	\$	45
Medical Clerical Role	Executive Assistant II	\$	55
Medical Clerical Role	Executive Assistant-Bilingual	\$	45
Medical Clerical Role	Executive Secretary	\$	68
Rehab/Physical Medicine	Exercise Physiologist	\$	48
Medical Clerical Role	FGP Medical Secretary		
Medical Clerical Role	FGP Secretary		
Medical Clerical Role	File Clerk	\$	27
Medical Clerical Role	Financial Assistant	\$	30
Medical Clerical Role	Financial Representative	\$	35
Medical Clerical Role	Financial Supervisor	\$	45
Medical Clerical Role	General Clerk	\$	27
Radiology	General/ Diagnostic X-Ray	\$	60

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Rates**

	Grant Administrator		
	Health Educator		
Helpdesk	Help Desk	\$	60
Medical Clerical Role	Housekeeping Manager	\$	40
Medical Clerical Role	Housekeeping- Night	\$	27
Medical Clerical Role	Housekeeping-Day	\$	27
Medical Clerical Role	Housekeeping-Evening	\$	27
Medical Clerical Role	HR Generalist	\$	45
Medical Clerical Role	HR Recruiter	\$	65
Medical Clerical Role	Human Capital Management (H	\$	35
Medical Clerical Role	Human Resource Assistant I	\$	35
Medical Clerical Role	Human Resource Assistant II	\$	40
Medical Clerical Role	Human Resource Assistant III	\$	45
Medical Clerical Role	Human Resources	\$	55
Admitting/Scheduler	IDX/Eagle/Epic/Care Cast	\$	30
Medical Clerical Role	Inventory Clerk	\$	27
Medical Clerical Role	Junior Administrative Assistant	\$	27
	Lab Supervisor	\$	90
Laboratory - All Areas	Laboratory Clerk/ Aide	\$	27
Laboratory - All Areas	Laboratory Technician	\$	40
Laboratory - All Areas	Laboratory Technologist	\$	75
Environmental Services	Laundry Aide- Evening	\$	26
Environmental Services	Laundry Aide-Day	\$	26
	Learning Network Specialist		
	Liscensed Creative Arts Therapist		
	Maintenance Technician	\$	30
Environmental Services	Maintenance Technician- Day	\$	30
Environmental Services	Maintenance Technician- Evenii	\$	30
Environmental Services	Maintenance Technician- Night	\$	30
Radiology	Mammography	\$	60
	Managed Care		
Medical Clerical Role	Material Handler	\$	26
Medical Clerical Role	Material Handler- Day	\$	26
Medical Clerical Role	Material Handler- Evening	\$	26
Medical Support Staff	Medical Assistant	\$	40
Medical Administrative Role	Medical Biller	\$	35
Medical Clerical Role	Medical Office Assistant/ Clerk	\$	30

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Rates**

Medical Clerical Role	Medical Office Manager	\$	50
Admitting/Scheduler	Medical Records Clerk	\$	37
Medical Clerical Role	Medical Secretary	\$	35
Medical Clerical Role	Medical Transcription	\$	40
Radiology	MRI	\$	60
Social Services	MSW (CSW)	\$	55
IT infrastructure	Network Administrator	\$	95
Nutrition Services	Nutritionist/ Dietician	\$	60
Rehab/Physical Medicine	Occupational Therapist	\$	85
Medical Clerical Role	Office Assistant	\$	28
Medical Clerical Role	Office Coordinator	\$	30
Medical Clerical Role	Patient Registrar Epic	\$	30
Admitting/Scheduler	Patient Registration	\$	30
Medical Clerical Role	Patient Registration- Clinic	\$	30
Medical Clerical Role	Patient Representative	\$	30
Medical Clerical Role	Patient Service Representative	\$	30
Medical Clerical Role	Payroll Specialist		
Medical Clerical Role	Payroll Transfer		
Pharmacy	Pharmacist (RPh)	\$	110
Pharmacy	Pharmacy Technician	\$	50
Medical Support Staff	Phlebotomist	\$	40
Rehab/Physical Medicine	Physical Therapist	\$	85
Project leadership	Program Assistant	\$	90
Project leadership	Program Manager	\$	120
Project leadership	Project Associate	\$	90
Project leadership	Project Manager	\$	120
Rehab/Physical Medicine	PTA	\$	50
Radiology	Radiation Therapist	\$	115
Medical Clerical Role	Receptionist/ Light Computer	\$	30
	Recruiter	\$	65
Medical Clerical Role	Registrar	\$	30
Medical Clerical Role	Registrar Epic	\$	30
Rehab/Physical Medicine	Respiratory Therapist	\$	85
Medical Clerical Role	Secretary	\$	35
Medical Clerical Role	Secretary1	\$	35
Medical Clerical Role	Senior Accountant	\$	75
Medical Clerical Role	Senior Accounting Clerk	\$	40

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**To Agreement between Montefiore Medical Center and Winston Support Services, LLC
Rates**

Medical Clerical Role	Senior Clerk	\$	35
Medical Clerical Role	Senior Clerk With Epic	\$	35
Medical Clerical Role	Senior Clerk-Epic	\$	35
Medical Clerical Role	Senior FGP Medical Secretar	\$	40
Medical Clerical Role	Senior Medical Secretary	\$	40
Medical Clerical Role	Service Associate	\$	28
Social Services	Social Worker LCSW	\$	70
Social Services	Social Worker -LMSW	\$	65
Rehab/Physical Medicine	Speech Pathologist	\$	85
Medical Clerical Role	Stock Clerk	\$	27
Medical Clerical Role	Stock Person II	\$	28
Storage Systems Administrator	Storage Systems Administrator	\$	125
Medical Clerical Role	Study Coordinator		
IT infrastructure	Systems Administrator	\$	110
IT infrastructure	Systems/ Network Engineer	\$	110
	Trainer		
	Tumor Registrar		
UI/UX Design	UI/UX Design	\$	75
Radiology	Ultrasound Tech	\$	60
Radiology	Ultrasound Vascular/ Cardiac E	\$	65
Admitting/Scheduler	Unit Clerk	\$	28
Radiology	Vascular Tech	\$	60
Application/Web development	Web Developer	\$	70
Radiology	Xray Technologist	\$	60

EXHIBIT A

**To Agreement between Montefiore Medical Center and Winston Support Services, LLC
Rates**

Category - Nurse	Skill	Updated Market Rates	
I	Med / Surg	\$	90
	Tele	\$	90
	Dialysis	\$	100
	Psych	\$	90
II	Wound Care / Burn	\$	96
	Stepdown	\$	96
	Peds (CHAM6)	\$	112
	ENDO	\$	115
III	OR	\$	125
	Oncology	\$	96
IV	ICU	\$	98
	CVICU	\$	98
	CSICU	\$	98
	CICU	\$	98
	CCU	\$	98
	CVOR	\$	120
	MICU	\$	98
	NICU	\$	112
	PACU	\$	120
	PCCU	\$	112
	PEDS	\$	112
	PICU	\$	112
	ER	\$	98
	Tele	\$	98
	Postpartum / L&D	\$	98
	Infection Control	\$	102
	Cath	\$	102
	IR- Interventional Radiology	\$	102
	EP	\$	102
	GI	\$	102